

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631801

Plaintiff,

v.

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF SPECIAL MOTION TO
STRIKE PLAINTIFF'S FIRST AMENDED
COMPLAINT PURSUANT TO C.C.P.
§ 425.16 (ANTI-SLAPP MOTION)**

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND
MICHAEL R. CHAMBERS respectfully request that the Court take judicial notice of the following
items, pursuant to Evidence Code sections 452 and 453:

1. Plaintiff's operative First Amended Complaint in the instant action. (A true and
correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit A.)

2. Plaintiff's operative First Amended Complaint in the related action,
contemporaneously filed with this action. That action is entitled *Rosario v. CSAA*, San Francisco
County Superior Court Case No. CGC-25-631802). (A true and correct copy is attached to the
Declaration of Tyler J. O'Connell as Exhibit B.)

3. Register of Actions, in *Rosario v. Abdelhalim*, San Francisco County Superior Court
Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration of Tyler J.
O'Connell as Exhibit C.)

4. Defendant's Substitution of Defense Counsel, filed in *Rosario v. Abdelhalim*, San
Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
to the Declaration of Tyler J. O'Connell as Exhibit D.)

5. Defendant's Motion in Limine # 6, filed in *Rosario v. Abdelhalim*, San Francisco
County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
Declaration of Tyler J. O'Connell as Exhibit E.)

6. Defendant's Motion in Limine # 8, filed in *Rosario v. Abdelhalim*, San Francisco
County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
Declaration of Tyler J. O'Connell as Exhibit F.)

7. Defendant's Motion in Limine # 17, filed in *Rosario v. Abdelhalim*, San Francisco
County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
Declaration of Tyler J. O'Connell as Exhibit G.)

8. Order re Trial Scheduling and Motions in Limine, filed in *Rosario v. Abdelhalim*,
San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
attached to the Declaration of Tyler J. O'Connell as Exhibit H.)

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1 9. Plaintiff's Judgment Notwithstanding the Verdict, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit I.)

4 10. Plaintiff's Declaration in Support of Judgment Notwithstanding the Verdict, filed in
5 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
6 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit J.)

7 11. Defendant's Opposition to Plaintiff's Judgment Notwithstanding the Verdict, filed
8 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
9 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit K.)

10 12. Plaintiff's Motion for New Trial, filed in *Rosario v. Abdelhalim*, San Francisco
11 County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the
12 Declaration of Tyler J. O'Connell as Exhibit L.)

13 13. Defendant's Opposition to Plaintiff's Motion for New Trial and Mistrial, filed in
14 *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
15 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit M.)

16 14. Order on Plaintiff's Post-Trial Motions, filed in *Rosario v. Abdelhalim*,
17 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
18 attached to the Declaration of Tyler J. O'Connell as Exhibit N.)

19 15. Plaintiff's Prayer to Judge East re: Motion for Disqualification of Judge Wong, filed
20 in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true
21 and correct copy is attached to the Declaration of Tyler J. O'Connell as Exhibit O.)

22 16. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*,
23 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
24 attached to the Declaration of Tyler J. O'Connell as Exhibit P.)

25 17. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County
26 Superior Court Case No. CGC-21-594102. (A true and correct copy is attached to the Declaration
27 of Tyler J. O'Connell as Exhibit Q.)

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1 18. Plaintiff's Notice Designating Record on Appeal, filed in *Rosario v. Abdelhalim*,
2 San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is
3 attached to the Declaration of Tyler J. O'Connell as Exhibit R.)

4 19. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San
5 Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached
6 to the Declaration of Tyler J. O'Connell as Exhibit S.)

7 20. Plaintiff's *Original* Complaint in the related action. (A true and correct copy is
8 attached to the Declaration of Tyler J. O'Connell as Exhibit T.)

9
10 Dated: April 9, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

11
12
13 By _____
14 Chad S. Tapp
15 Tyler J. O'Connell
16 Attorneys for Defendants
17 CSAA INSURANCE EXCHANGE,
18 CARBONE, SMITH & KOYAMA, AND
19 MICHAEL R. CHAMBERS
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 9, 2026, I served the following document:

7 **REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF SPECIAL MOTION TO STRIKE**
8 **PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. § 425.16**
9 **(ANTI-SLAPP MOTION)**

10 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
11	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
12	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
13	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

14 Addressed as follows:

15 **PLAINTIFF, IN PRO PER**

16 Franciscus Dylan Rosario
17 7624 Melody Drive
18 Rohnert Park, CA 94928
19 soltrinox@gmail.com

20 I declare under penalty of perjury under the laws of the State of California that the foregoing
21 is true and correct. Executed on Sacramento, California on April 9, 2026.

22 **Monique Schubert**
23 Monique Schubert